The Closed Exit

Racialisation, Emancipation, and the Making of Anti-Blackness

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Chapters I to III

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Chapter I
Exits That Worked

Hereditable hierarchical structure of one's kin is quite common. Hierarchies from which there is no way out are not. The distinction between the two is foundational for everything that follows, as an argument that turns on closure is worth nothing if closure exists in every other place. This chapter parses through four societies that held people in hereditary subordination while allowing them, or their children, to exit structured subordination. They are here to illustrate what the absence of closure looks like, so that its presence can be recognised later. This allows for falsification against the thesis.

Rome

Rome is the clearest case of hereditary subordination and exit. Rome was a society built on slave labour on an immense scale, and it freed slaves routinely rather than exceptionally. A slave formally freed by a Roman citizen had the capability to integrate into Roman society via citizenship, a *libertus*, with real if restricted rights.

The restrictions were genuine, and the Augustan legislation made them inelastic. The *lex Fufia Caninia* of 2 BC capped testamentary manumission on a sliding scale: an owner of between two and ten slaves might free up to half of them, an owner of between ten and thirty up to a third, of thirty to a hundred up to a quarter, of a hundred to five hundred no more than a fifth, with an absolute ceiling of a hundred freed persons however many were owned (Gaius, *Institutes* 1.42–46). The *lex Aelia Sentia* of AD 4 required that a slave be over thirty, held in Quiritary ownership, and freed by one of the three statutory procedures, by the rod, by the census or by will, if manumission was to confer citizenship (Gaius 1.17); a manumitter under twenty could free only by the rod and only with adequate cause shown before a council (Gaius 1.38–41). Slaves who had been branded, tortured or made to fight as gladiators and were then freed became not citizens but *peregrini dediticii*, assimilated to defeated enemies who had surrendered at discretion (Gaius 1.13–15). Those freed under thirty or by informal means became Junian Latins, free but not exactly citizens,

“Latins because they are assimilated to colonial Latins, Junian because they owe their freedom to the *lex Iunia*” (Gaius 1.22). The date of the *lex Iunia* is disputed and no firm one is asserted here; Pedro López Barja argues for around 7 BC or later, and describes the statute as giving juridical status to those who were living in de facto freedom while simultaneously excluding them from the citizenship (López Barja 2023, 93).

Freedmen also carried what Roman writers called the *macula servitutis*, the stain of slavery. Henrik Mouritsen devotes the second chapter of his study to this concept (Mouritsen 2011, ch. 2, 10–35), and his reading of it is not that it was a racial mark but that it pertained to one who had a dubious character, a working model concerning how a servile life may condition a slave, within a society that never justified slavery by nature or by descent.

The aspect with the most concern relates to the subsequent generation. In Niall McKeown’s summary of Mouritsen’s argument, “the absence of any justification of slavery based on race or ‘nature’ created, according to M., a situation where any ‘stain’ of slavery was largely a suspicion of the moral effect of a slave’s life experience upon an individual. This meant that any stigma from slavery largely disappeared with the children of ex-slaves” (McKeown 2013, 277). In cases where the sons of freedmen were attacked in politics, McKeown reports Mouritsen arguing, it was for their *novitas*, their newness, rather than their *servilitas*. Elizabeth Meyer’s review grasps the same interpretation and locates it at Mouritsen’s page 265, highlighting freedmen and their sons as “unmarked by a stigma of slavery” (Meyer 2011).

Both formulations are reviewers’ summaries rather than Mouritsen’s own words, which I have not been able to read directly, and the claim is attributed accordingly.

The picture is not perfectly clean, and McKeown himself immediately complicates it. He objects that “when he suggests, however, that freedmen and their children were largely stigmatised because they represented parvenus par excellence who had risen from nowhere rather than because of their connections with slavery, one wonders why the ex-slave ‘origins’ of individuals could sometimes be cast in their face many generations after the fact (e.g. Aulus Gabinius, cos. 58 B.C.)” (McKeown 2013, 278). The example repays a

moment's care. The allegation of servile descent attaches to an earlier Aulus Gabinius, tribune in 139 BC, whom the *Oxford Classical Dictionary* records as allegedly the grandson of a slave; the consul of 58 was probably his grandson in turn. No currently surviving text attacks the consul himself on that ground, and Cicero's jibe at the tribune, "ab homine ignoto et sordido" (*De legibus* 3.35), is an attack on obscurity rather than on slavery.

That qualification advances in favour of the thesis rather than against it. Even on McKeown's own example, what survives four generations is a rumoured ancestral lineage, not a structured status. The sentiment outlived the condition and the condition did not form a category. Descent from a freedman did not cement one's own legal position, their social manoeuvrability or their place in the city, and within subsequent generations it ceased to mark anyone at all.

Islamic Law

Islamic law offers a second case, and a more complicated one, because the exits it provided were open in principle and, for one population, closed in practice.

The law gave several routes out of slavery. Manumission was an act of religious merit, and in a set of specified cases it was a required expiation, *kaffāra*. The Qurʾān prescribes it for unintentional homicide, where the killer "must free a believing slave and pay blood-money to the victim's family" (Q 4:92); as one option among three for a broken oath, alongside feeding or clothing ten poor people (Q 5:89); and for retracting the formula of *ẓihār*, where the husband "must free a slave before they touch each other" (Q 58:3). Classical jurisprudence adds a fourth, from hadith rather than from the Qurʾān: breaking the Ramadan fast by intercourse. Al-Ḥalīmī's treatment, translated by Jonathan Brown, states that God "made manumission obligatory in expiations (*kaffārāt*), as He did in providing food and clothing as well as fasting," and records the same four occasions (Brown 2024, translating al-Ḥalīmī).

The *mukātaba* contract, grounded in Qurʾān 24:33, allowed a slave to purchase freedom in instalments. Ramon Harvey translates the relevant clause as an instruction to

owners that “those who desire an indenture (*al-kitāb*) from amongst your slaves, write [a mutual contract] with them (*fa-kātibūhum*) if you see good (*khayr*) in them and give them from God’s wealth (*māl Allāh*) that he has given you” (Harvey 2019, 68). The contract gave the *mukātab* a legal status distinct from that of other slaves, typically a total price payable over a set term.

What the schools disagreed about was whether an owner had to accept such a request. Harvey’s reconstruction of the early exegesis is that an initially dominant emancipatory reading of the verse as an obligation within early Medina is preserved for over a century in Mecca, finding a home in Basran Ibāḍī scholarship of the late second or eighth century, while the dominant proto-Sunnī approach, centred in Iraq, adopts the formerly minority opinion that the contract is merely permissible (Harvey 2019, 76–87). On the obligatory side he places ʿUmar, ʿUthmān, Ibn ʿAbbās, the early Meccans following Ibn ʿAbbās, and the Ibāḍīs; on the permissive side ʿAlī, al-Ḥasan al-Baṣrī, Abū Ḥanīfa, Mālik b. Anas and Sufyān al-Thawrī.

The most important provision for this thesis concerns the enslaved woman who bore her master’s child. Such a woman, the *umm al-walad*, could not be sold, and became free on her master’s death. Younus Mirza traces the rule to the caliph ʿUmar, who intervened when such a woman was sold, and shows that all four Sunni schools incorporated his ruling into their authoritative opinions, while the Shiʿi schools followed ʿAlī, who had permitted the sale (Mirza 2017, 298–314, at 306). The child of such a union was born free (Bashir 2026).

The rule matters because it is a route out of slavery that runs through a woman’s body and her children, and because it makes the father’s status, not the mother’s, the one that counts. Chapter III sets it against the rule Virginia adopted in 1662, which did the reverse. The comparison shows that whether a child inherits bondage is a legal choice about which parent to follow, and that the choice decides whether the exit stays open.

Doctrine and practice, though, came apart, and the gap is where the interesting work happens. In his study of the Niger Bend, Bruce Hall shows that the categories *bīḍān* and *sūdān*, usually translated “whites” and “blacks,” did not follow skin colour. Scholars in

West Africa and the Maghrib "almost always defined people who claimed Berber or Arab origins as '*Bidan*' or 'Whites', regardless of their actual skin colour" (Hall 2011). What decided the matter was genealogy, a claim to Arab or Berber Muslim ancestry, and people who could not make that claim were placed on the other side of the line. A body of law with unusually open exits was, for people classified as black, much harder to use. Chapter III picks that up.

Medieval Europe

A third case comes from medieval Europe, and here the historiography is useful because it cuts against a position this thesis might be expected to take.

Robert Bartlett's study of how medieval writers used words such as *gens* and *natio* concedes a great deal to those who find race before modernity. Those terms, he notes, "imply, etymologically, a concept of races as descent groups," and belong to "the genealogical idiom of much medieval thinking," in a world "in which blood and descent were seen as fundamental" (Bartlett 2001, 44). But he raises the resemblance to modern racism only in order to set it aside: "although it may seem that medieval racial thinking was just as biological as modern pseudoscientific racism, it had as inbuilt components the common descent of all human beings with, as a necessary corollary, the implication that races had developed over the course of time" (2001, 45).

His conclusion therefore goes the other way. "For the majority of medieval writers," Bartlett writes, "ethnicity was defined by and manifested in culture as much as, or more than, descent" (2001, 46). When Regino of Prüm distinguished nations by "descent, customs, language and law," only the first of the four was biological, and "customs, language, and law are the outcome of socialization and hence are changeable." Nor, Bartlett adds, "do *gentes* have to be immutable": after the Viking conquests, the Northumbrians and the Angles "coalesced with the Danes into one *gens*" (2001, 43). And because medieval writers traced all peoples back to the lineage of Adam and Noah, peoples were historical formations that had come into being and could change, rather than fixed types.

Bartlett is often cited by scholars who argue that race existed in the Middle Ages, because he took medieval ideas of descent seriously. His real finding diminishes their case, and on the argument made here it is the stronger piece of evidence. A vocabulary of descent with an open exit is not racialisation. Bartlett serves this thesis as a measure of control: a society that thought in terms of blood and lineage and still treated the groups it named as changeable.

The Iberian *limpieza de sangre* statutes of the fifteenth century onwards are the obvious counter-instance, and they belong to the other side of the argument rather than to this chapter. What makes them different is precisely that conversion had happened and was ruled insufficient. The *converso* had taken the exit and found it did not lead anywhere, which is the structure Chapter III describes in Virginia.

The Malagasy Highlands

The fourth case is the closest to this thesis's concerns, and the one that calls for the most care.

Merina society in the highlands of Madagascar ordered people according to descent, and the architecture of that ranking has four positions rather than three. Marco Gardini states it precisely: "In Imerina, individuals who were not enslaved belonged to three, generally endogamous, categories: the *andriana* ('nobles', i.e. people belonging to families with kinship ties with current or past sovereigns), the *hova* (the commoners), and the *mainty* (literally 'black people', who were 'servants' of the king and often enjoyed important political and economic positions). All these categories were equally exposed to *fanompoana* due to the sovereign, albeit often with different tasks according to their status. Slaves (*andevo*) belonged to a fourth statutory group that was excluded from *fanompoana*; they were legally considered to be the exclusive property of their masters, they were not recognized as legal parents of their children, and they were socially perceived as impure and dirty (*maloto*)" (Gardini 2022, 234).

Three features of that passage matter here. On Gardini's account the *mainty* were not enslaved, and often held position and property. Obligation to the sovereign,

fanompoana, ran across all three free categories and was a mark of inclusion rather than of belittlement, which is why exclusion from it defined the enslaved. And the legal disability that defined the *andevo* was a kinship disability: they "were not recognized as legal parents of their children." Natal alienation, in Patterson's term, is written into the definition.

The third category is harder to place than that summary suggests, because the sources disagree about its status. Louis Molet, in a study of the Malagasy vocabulary of slavery, gives its fuller name, *Mainty enin-dreny*, the "Blacks of the six mothers," and says it was bestowed by Andrianampoinimerina when he gathered three groups, the *Tsiarondahy*, the *Manisotra* and the *Manendy*, into a single caste and settled them in villages of their own. All three, on Molet's account, were freed people, *affranchis*; but he ranks them below the free *hova*, and treats the *mainty* and the *andevo* as together forming one caste (Molet 1974, 56, 58). Jacqueline Ravelomanana, working from the Malagasy *Firaketana*, calls the *Maintienindreny* a hierarchy of royal slaves, and then qualifies this herself: the *Manisotra* and *Manendy* "remained free families like the Ambaniandro, while still belonging to the category of 'the Blacks of the six mothers'." The category seems to have been mixed, free in some of its parts and servile in others, and to have sat on the boundary between freedom and slavery rather than clearly on one side of it. The course taken here is to follow Gardini's four-category scheme, the most recent account and the one available in English, while recording that the line it draws between the *mainty* and the *andevo* was contested.

Against the view that the Black-White binary is simply a European colonial export, the vocabulary of the broad division, *fotsy* and *mainty*, "white" and "black," is inherited from the Austronesian language family rather than borrowed from Europeans, and this can be directly cited rather than asserted. The Austronesian Comparative Dictionary reconstructs Proto-Malayo-Polynesian **putiq*, "white," with Malagasy *fótsi* among its reflexes alongside Tagalog *putí?*, Malay *puteh* and Javanese *putih*; and Proto-Malayo-Polynesian **qitem*, "black," with the stative prefix giving **ma-qitem*, of which Malagasy *ma-inty* is the regular reflex (Blust and Trussel, ACD). That *mainty* is transparently **ma-*

plus **qitem* is itself the evidence of inheritance. The colour terms are older than any contact with Europe by a drastically large margin.

What the words do not show is that the binary is equally old, and the scholarship is clear that it is not. The racial sense of *mainty* is recent. Gardini describes it as a category "that, from being a privileged one in the past, slowly became a synonym of *andevo* and African origin" (Gardini 2022, 236), and he records that the change began when, "after abolition, many slaves tried to be recognized as *mainty* in order to avoid the stigma of slavery" (2022, 236 n. 9). David Graeber, who is careful not to call the terms simply the product of missionary influence, adds that they "go back to 19th century social classifications which, however, originally had a very different meaning" (Graeber 1997, n. 15). Molet makes the same observation about the Merina in the older period: the *mainty* were generally darker-skinned than the *hova*, but colour, he says, never really carried discriminatory weight (Molet 1974, 58). Among the southern Betsileo, meanwhile, the idiom of slave descent is not colour-coded at all; it is the language of clean and unclean.

That is not a weakness in the case. It is the thesis in miniature. An old word for a privileged category acquired an essentialising, racial content only once abolition had closed the older ways out of slavery, and it acquired that content through the very people who tried to use it as an exit. The vocabulary is Austronesian. Its racial meaning followed the closure.

The sharpest form of evidence for how people left slavery in the highlands comes from the Betsileo to the south of Imerina, and it should not be read as evidence about the Merina without that qualification. Denis Regnier's fieldwork was in a southern Betsileo community of about five thousand people, which he calls Beparasy (Regnier 2015). Among his sources is a nineteenth-century manuscript by a Betsileo noble named Isambo describing a ritual called *manoza lela*, "washing the tongue," a variant of the *mikao-dela*, or "scratching of the tongue," still described to Regnier by people in the area. The ritual, he writes, "is presented as a ritual that could be performed with two different aims: to reintegrate people who had been freed from slavery, or to reintegrate children who had been previously repudiated by their parents" (Regnier 2015, 162). Once this ritual had finalised, the family could count the person again as one of its members, and he or she could be

buried in the ancestral tomb (2015, 163). Regnier's conclusion is that "it was always possible to ritually remove the deep uncleanliness associated with enslavement" (2015, 162). Slaves could also, he notes, "work in addition to their duties, save money and buy themselves back from their masters" (2015, 161).

The ritual is worth dwelling upon because of where it put the freed person back. In the highlands the family tomb was the epicentre of kinship, the proof of belonging to a line, and the claim to its land. To be buried in it was to be counted among the ancestors. The exit from slavery therefore ran through kinship: it did not simply release a person from a master but readmitted them into a family, living and dead. Chapter IV shows what happened when that route was removed.

As a prerequisite, two limits need stating. Isambo was himself a free-born noble who had been kidnapped and sold, so the documented case is of someone restored to a status he had lost. Regnier's evidence on those born into slavery cuts both ways. On one side he finds "no historical evidence that a strong stigma or taint comparable to that of today's slave descendants was attached to having been a slave during part of one's life or to having ancestors who had been enslaved" (Regnier 2015, 163), which is an argument from silence, but a telling one. On the other, the ritual worked by returning a person to a descent group, and "a large number of slaves whose forebears had been born into slavery for several generations had been severed from the links with their descent groups" (2015, 164). The exit was genuine for those with a family to return to, and much harder in practice for the slave-born, who had none. And the evidence is Betsileo, not Merina. Even with these limits, the southern highlands had a hereditary servile category, a lexicon of colour, and an exit that worked, at least for those who had been freed.

What the Cases Show

Set side by side, the four cases show exits of varying systems. Rome offered a legal exit through manumission, and one that worked across generations, irrespective of whatever insults survived it. Islamic law offered a contractual exit through self-purchase and a reproductive one through the *umm al-walad*, though practice restricted both for

people classed as black. Medieval Europe offered a cultural exit, through language, law and custom. The Betsileo offered a ritual exit back into kinship, into the family tomb.

None of this makes these good places to have been a slave, and the chapter is not an argument that they were. The claim is narrower. Hereditary subordination, even harsh and long-lasting subordination, is not in itself racialisation. In each of these societies the group at the bottom could, in principle and often in fact, be left. What needs explaining is not hierarchy, which is common, but the closing of the ways out, which is not. The rest of the thesis follows three places where they closed.

Chapter II
Genesis 9, and the Manufacture of Essence

A Text That Does Not Say What It Is Taken to Say

The text on which four centuries of Atlantic slaveholders, and their predecessors in the Islamic world, rested a theory of hereditary bondage is nine verses long, and it does not say what it is taken to say.

After the flood Noah plants a vineyard, drinks the wine, and lies uncovered in his tent. Ham, his son, stumbles upon his father's nakedness and tells his brothers, who walk in backwards and cover him without looking. Noah awakes, learns of the situation, and invokes a curse. The curse falls not on Ham but rather on Canaan, Ham's son, who does nothing in the narrative at all, and its content is servitude. Skin colour appears nowhere in the passage. Neither does the continent of Africa. The Hebrew Bible's references to Kush, conventionally rendered Ethiopia, carry no pejorative charge.

David Goldenberg, whose account this chapter follows, puts the two omissions in a single sentence: "The Bible says nothing about skin color in the story of Noah, but this feature was somehow woven into the biblical text" (Goldenberg 2017b). And on the identity of the cursed: "Even putting aside for the moment the fact that according to the Bible it was Canaan, not Ham, who was cursed, why was Ham identified with black Africa?" The received name of the doctrine, the Curse of Ham, contains an error about its own text.

This chapter is here for a methodological reason as much as a substantive one. Everywhere else in this thesis the essentialising narrative has to be inferred from its effects. Here it can be watched accumulating, in a textual tradition whose layers can be dated, and the order of events can be established rather than reconstructed.

How the Fusion Happened, and When

Goldenberg's argument is that the fusion of blackness, curse and slavery is a post-biblical development, layered onto the text by later interpreters in societies that were

already enslaving black Africans (Goldenberg 2003; 2017a). As Molly Levine summarises the earlier book, the passage "neither uses the Hebrew word for black (Kushi) nor curses Ham"; the theme becomes "common in Near Eastern sources" from the seventh century and surfaces in Western Christian writers only much later (Levine 2004).

Goldenberg's own account of the causes is a list of four, and it is quoted here in full because it is unusually candid about how much of the doctrine is accident:

> *"In sum, in regard to Noah's curse, four factors were at play during the first six or seven centuries of the Common Era: explanation, an attempt to make sense of the Bible; error, a mistaken recollection of the biblical text [that Ham was cursed]; environment, a social structure in which the Black had become identified as slave; and etymology, a mistaken assumption that Ham meant 'black, dark.' The combination of these factors was lethal: Ham, the [assumed] father of the black African, was cursed with eternal slavery. The Curse of Ham was born." (Goldenberg 2003, 167; quoted in Adams 2005, 157.)*

Three of the four are intellectual accidents: a misremembering, a false etymology, and the ordinary exegetical impulse to make sense of an obscure passage. The fourth is not an accident at all. "A social structure in which the Black had become identified as slave" is not a mistake about a text. It is a description of a world, and it is the one that does the work. The other three supply the material; the social structure supplies the motive for assembling it in that particular way.

The dating supports the reading. On Goldenberg's account the identification emerges in Muslim literature after the seventh-century conquests, at the point when, in the phrase Stirling Adams's review preserves, "the Black became strongly identified with the slave class in the Near East, after the Islamic conquest of Africa" (Adams 2005). Christian writers in the West adopt it much later, and it is in the sixteenth century that its most damaging form comes to full fruition there.

That form is the most crucial one, and Goldenberg distinguishes it carefully. There is a *single* curse, in which blackness is the mark of a people cursed with slavery, as in the Syriac *Cave of Treasures*; and there is a *dual* curse, in which the curse itself produces both

the blackness and the bondage. His comparison is exact: “As opposed to seeing blacks as the descendants of the one cursed with slavery, as in the Syriac *Cave of Treasures* (‘… and his descendants were reduced to slavery, and they are the Egyptians, the Kushites, the Indians, and the Musraye’), a dual curse more profoundly and more insidiously ties blackness to servitude, for dark skin is now either a result of the curse of slavery or occurs with it as part of the curse” (Goldenberg 2017b). The dual form appears in al-Kisāʾī’s *Tales of the Prophets*, where Noah says: “May God change your complexion and may your face turn black! … May He make bondswomen and slaves of Ham’s progeny until the Day of Resurrection!”

The distinction is not antiquarian. Under the single curse, blackness is an identifying feature of a people who happen to be under a curse of servitude: it labels them. Under the dual curse, blackness *is* the servitude, visible on the body, and the two cannot be separated because the same act produced both. That is the difference between a mark and an essence, and it is the precise textual form of what this thesis means by an essentialist claim.

Goldenberg’s conclusion concerning the transatlantic career of the doctrine is equally exact about what it was for: “From Europe the Curse of Ham came to British colonial America, where it was used to justify black slavery as early as 1700 and continued well into the 20th century. As in Europe, in America too the dual-curse version was common, and as in Europe the popularity of the dual curse was a reflection of the increasing debasement of black skin. There is, however, a significant difference between Europe and America. The percentage of those resorting to the Curse to justify black slavery as opposed to explaining the origin of dark skin is much greater in America than in Europe” (Goldenberg 2017b, citing *Black and Slave*, 146–59).

Read against the thesis, that is a finding about function. The very same story is available on both sides of the Atlantic. In Europe it is used mostly to explain where dark skin came from. In America it is used to justify captivity. The story does not change; what it is wanted for does.

The Persian Evidence, and an Objection

The same amalgamation is legible in Persian sources, and one article assembles them. Minoo Southgate surveys tenth- to fourteenth-century Iranian writings and finds the curse circulating there too. The geographer al-Qazwīnī (1203–83) states that "It is said Noah cursed his son Ham and Ham's color turned black," which is the dual curse in a dated Persian source; and al-Masʿūdī traces the Nubians, Beja, Zanj, Zaghawa, Kanim, Maranda, Songhai, Gao and Ghana back to Ham (Southgate 1984, 14).

Southgate also documents the competing naturalistic explanation, which matters for Chapter III. In her summary, Avicenna held that an intemperate climate "stunts certain peoples' development, rendering them suitable to be slaves," and in the *Book of Healing* he allotted menial work to the Turks and "the blacks in Africa," calling them "peoples who are by their very nature slaves" (Southgate 1984, 14–15). Ibn Khaldūn, she notes, "attempts to prove the biblical story invalid and to expound the climate theory and its implications" (1984, 15). That is worth holding onto: when Ahmad Bābā cites Ibn Khaldūn against the curse in Chapter III, he is citing an authority who had replaced one essentialism with another.

Southgate's own conclusion is a direct objection to this thesis and should be met instead of avoided. She writes that "the theory that such images are invented to justify the enslavement of a certain group is weakened by the fact that slavery was accepted in ancient and Islamic Iran, and there was no need for its justification," and that it "is further shaken when we consider that there were many groups of slaves in Iran, and only blacks were the object of violent racial attacks" (1984, 26). Her own preferred explanation is colour-consciousness and the perception of blacks as the Other, which she concedes is "at best only a partial one."

Two replies. The first is that she misplaces what needed justifying. What required a criterion was never slavery as such but who might lawfully be enslaved, and in Islamic law that question is ineluctable, because Muslims may not enslave Muslims. Her own earlier pages establish the stakes, describing a Persian Shirazi dynasty ruling the East African

coast for more than five hundred years and prospering through a flourishing slave trade (1984, 6).

The second is that her strongest objection is this thesis's most potent testament. She reports that "little stigma was attached to the slave status of the mamluks and palace *ghulams*, some of whom rose to high positions and married into the royal family" (1984, 9), while the *Qabusnamah* "does not recommend blacks even for kitchen service" (1984, 8). Turkish slaves rose to command and founded dynasties; Slavs, Armenians and Hindus were slandered, but none of them became the object of an attack like the one reserved for the Zanj. A single society, a single legal status, and two outcomes. The reason only blacks attracted the fierce attack is not that Persians found them stranger. It is that only their category failed to dissolve, and the invective is what a closed category generates. Southgate has the correlation and reads it in the wrong direction.

Two further items from her survey belong here. In the *Darabnamah*, the Zanj "pretend to accept Islam and are massacred when this falsehood is discovered" (1984, 21): conversion offered, disbelieved, and punished, which is the structure of Chapter III appearing in a Persian romance. And in Rumi's *Masnavi* the Prophet rewards an Ethiopian slave by blessing him white, so that "the Abyssinian negro became white as the full moon" (III, 3166–73, at 1984, 12). Set beside the proverb Southgate records, that you cannot wash the Zangi white, the exit is first declared an impossibility and then made possible only by a literal miracle.

Two cautions belong with this evidence. Southgate herself notes that "Persian sources revealing prejudice against blacks are not numerous," and that many of the medieval works she examined "make no mention of blacks" (1984, 4). Her sources, moreover, are romances, poetry, proverbs, geographies and works of philosophy: what they document is the imagination of a literate elite rather than a measure of everyday social attitude. The article also belongs to its moment. Southgate reads her material alongside Bernard Lewis's *Race and Color in Islam* (1984, 10), and she explains that she undertook it in 1979, after Khomeini's release of the black American hostages, "to set the record

straight" (1984, 3). None of this weakens the textual evidence she assembles, but it is a reason to rest the argument on the texts she quotes rather than on her reading of them.

Braude, and Why the Two Accounts Are Complements

Benjamin Braude's work offers the European half of the story, and is complementary to Goldenberg's rather than any antithesis to it. Goldenberg cites him in support, as one of the studies that challenge the older view that Christian writers took the idea from rabbinic sources (Goldenberg 2017a, 18 n. 16).

Braude shows, in David Brion Davis's summary, that "medieval and Renaissance writers often identified Ham with Asia, not Africa," and Davis adds that "the supposed curse of Ham was used to justify European serfdom as well as the medieval enslavement of Slavs, Turks, and other peoples" (Davis 2006, summarising Braude 1997). In Latin Christendom, then, the curse was for a long time a general-purpose justification for servitude, unattached to any distinct people or group. It began to settle on Africans once the Portuguese were trading in them: Davis singles out Gomes Eanes de Zurara's chronicle of 1453, written as the Portuguese trade on the West African coast was getting under way, as the most famous early example of the idea in a Christian nation (Davis 2006). Braude's wider work dates the firm attachment later still, to the Atlantic trade of the eighteenth century (Adams 2005).

The two accounts are not in dispute, and the point matters for the argument. Put together, they narrate something more precise than "the curse was racialised." The same story operated differently in different places, and in each place it settled on black Africans at the point where black Africans became the people being enslaved. Braude's medieval Europe, which had the text and used it on Slavs, is the control case for Goldenberg's Near East, which had the text and used it on Africans. A claim can sit in the exegetical literature for centuries without doing much. What the thesis wants to know is when the story became available to explain a foreclosure, and on both accounts the answer is the same: when the enslaving began.

What This Chapter Can and Cannot Establish

Two caveats are necessary here, and the first is not merely a matter of tact.

Jews appear in this thesis in two capacities: as a population subjected to descent-based exclusion, in medieval England and in the Iberian *limpieza de sangre* statutes, and as transmitters of an exegetical tradition in which some of this material first appears. Both are historically real, and Goldenberg, who is a scholar of rabbinic literature, handles the doubling with care. The consequential career of the Curse of Ham was overwhelmingly Christian and Islamic, contrary to the assumption that it was rabbinic, and Goldenberg and Braude agree on the point. The rabbinic material is early and comparatively marginal to what the doctrine later became, and the thesis says so here rather than leaving a reader to assume otherwise.

The second caveat concerns inference. That a text does not contain a claim which later readers found in it is a fact about the text, and one that is documented precisely. By itself it is not evidence about why they found it there. The inference this thesis draws, that the accretion served to explain an enslavement already under way, is supported by the ordering of events rather than demonstrated by it.

That ordering is the same one Barbara Fields identifies for the American case. A commonplace, she writes, “holds that people are more readily oppressed when they are already perceived as inferior by nature. The reverse is more to the point. People are more readily perceived as inferior by nature when they are already seen as oppressed” (Fields 1990, 106). Genesis 9 is a case where that sequence is legible in a documentary record rather than reconstructed from its outcomes, which is why it earns its own chapter. It is also, for the same reason, the chapter where the thesis is least exposed. If the essentialist claim really did come first, the exegetical record would show the fusion of blackness and curse preceding the identification of black people with the slave class. On Goldenberg’s dating, it does not.

Hagar, and the Other Enslavement in the Same Book

There is a second enslavement in Genesis, and it has a separate scholarly tradition attached to it.

Hagar, Egyptian, enslaved, made a surrogate at her mistress's instruction, and then expelled into the wilderness with her son, has been the central figure of womanist theology since Delores Williams's *Sisters in the Wilderness* (1993). Williams reads Hagar's story as one of survival and quality of life rather than of liberation. In Gary Dorrien's summary, the story "shows God helping Hagar to survive and to achieve a minimal quality of life by her initiative," and taking it seriously "precludes any claim that God always works to liberate the oppressed" (Dorrien 2022). Williams faulted James Cone and the liberation theologians for working, as Dorrien puts it, "with only one strand of the Bible, looking past the fates of the oppressed in it": the Exodus delivers the Hebrews, but the enslaved woman is not delivered. When Hagar first flees, God "tracked her down in the wilderness, telling her to return to Sarah and slavery" (Dorrien 2022).

Read against the present thesis, the relevant features of the narrative are structural. Hagar is sent back into slavery once and then expelled without being freed, which is exit without manumission, the precise combination that Chapter IV finds in Madagascar after 1896 and in Japan after 1871: released from a relation and left with nothing that would let the release take effect. And her son's condition follows hers, which is the reproductive rule the whole argument turns on. The same book supplies the text used to justify hereditary bondage and the text through which the reproductive mechanism of that bondage has been most closely read. That is not an ad hoc connection the thesis has had to manufacture, and it is one reason the religious thread and the feminist thread in this argument arrive so insistently at the same place.

Chapter III
1615 and 1667

Al-Jīrārī's difficulty concerned pragmatics rather than theology. As a merchant of the trans-Saharan trade he handled captives, moving them north across the unforgiving climate of the Sahara. Among them he met people who said they were Muslim, and Islamic law placed fundamental limits on the enslavement of Muslims. A wrongly held Muslim was not simply a bad bargain but a transgression of God's law, and the merchant who held him was in sin and would require expiation. So he consulted the most eminent scholar available, and the scholar answered at length.

Ahmad Bābā's reply turned on the legal grounds of enslavement rather than on the identity of the enslaved, and that is what creates utility for our understanding. Enslavement was lawful only through a legitimately constituted jihad against unbelievers. Only a handful of wars met the criteria. Muslims could not make war on other believers, and where they did so they could not lawfully enslave those who had submitted to Muslim authority. Applied to al-Jīrārī's cases, the conclusion followed directly: the peoples in question had never been conquered but had accepted Islam of their own volition, and so could not lawfully be held captive by fellow Muslims. By law, Black Muslims were to be treated exactly as other Muslims with respect to "enslaveability."

The treatise also takes on the Curse of Ham succinctly, which is where Chapter II and this one intersect. Timothy Cleaveland describes the *Miʿrāj* as a work that "criticised the association of 'Black' Africans with slaves, especially through the racialised version of the curse of Ham" (Cleaveland 2015). Ahmad Bābā rejected the story as inauthentic and grounded enslavement in unbelief rather than descent.

Bruce Hall's reading of the treatise bears this out, with one qualification. Ahmad Bābā, Hall finds, "seems non-committal about the question of the Hamitic origins of the 'Blacks'" but "does reject the story of Noah's curse of Ham," "although he later suggests that perhaps the curse on Ham was effective on most of Ham's descendants, but not all of them" (Hall 2005, 351). The principle on which he rests the matter is stated plainly: "you

know that the cause of enslavement is unbelief" (Hunwick and Harrak 2000, 27, quoted in Hall 2005, 351–52). He then turns to Ibn Khaldūn's environmental theory of racial difference (Hall 2005, 351), and Ibn Khaldūn had already disposed of the scriptural reading: "The curse of Noah upon his son is there in the Torah. No reference is made there to blackness" (Ibn Khaldūn, *Muqaddimah*, trans. Rosenthal, quoted in Hall 2005, 349–50).

So the *Miʿrāj* does two things at once. It rejects the scriptural story that had been orchestrated, over the previous nine centuries, to tie blackness to bondage, and it refuses the practical closure of the religious exit that the story was being used to justify. Chapter II traced how that story was made. Here it meets someone arguing against it, half a century before Virginia, in Arabic, in a Black West African city.

It would be an error, though, to make the treatise simpler or more congenial than it is. The same text, Cleaveland notes, "defined much of West Africa as non-Muslim or lightly Islamised, and thereby sanctioned the targeting of these peoples for enslavement" (Cleaveland 2015). Ahmad Bābā narrowed the category of the enslaveable by religion, and in the same motion drew a map of where it remained lawful to take people. He was holding the religious exit open, and marking out who stood outside it. A criterion that protects the converted necessarily specifies the unconverted, and in a slaving economy that specification is a commercial document as well as a legal one.

The Answer from Virginia

The Virginia Assembly's preamble records a difficulty of the same shape, arriving from the other direction. Masters had been declining to permit the baptism of enslaved children, uncertain whether the sacrament would carry emancipation with it.

The act, Act III of the September 1667 session, is titled "An act declaring that baptisme of slaves doth not exempt them from bondage." Its text runs: "WHEREAS some doubts have risen whether children that are slaves by birth, and by the charity and piety of their owners made pertakers of the blessed sacrament of baptisme, should by vertue of their baptisme be made ffree; It is enacted and declared by this grand assembly, and the authority thereof, that the conferring of baptisme doth not alter the condition of the person as to his

bondage or ffreedome; that diverse masters, ffreed from this doubt, may more carefully endeavour the propagation of christianity by permitting children, though slaves, or those of greater growth if capable to be admitted to that sacrament" (Hening 1823, II, 260).

The second clause proves still more revealing, and it is the one that tends to be skipped. Having removed the doubt, the Assembly expects that masters, "ffreed from this doubt," will evangelise more freely. The statute is not a restriction on the religion of the enslaved. It is a measure to make their conversion safe for property. Christianity is to be spread more energetically precisely because it has been rendered legally inert.

This is worth stating as a general form, because the thesis will address it again. The closure is not achieved by forbidding the exit. It is achieved by keeping the exit open and removing the effect of it. A person may walk through the door as often as they like; however, the door leads nowhere. That is a more durable instrument than complete prohibition, because a ban produces someone who was refused, and therefore a grievance, a complainant and a challenge, whereas this produces none at all.

The same reasoning turns up along the whole Anglophone Atlantic within sixty years, and the variations are instructive.

Maryland in 1671 passed "An Act for the Encourageing the Importacon of Negros and Slaues into this Province" (*Archives of Maryland* II, 272). Its preamble states that "Severall of the good people of this Prouince haue been discouraged to import into or purchase within this Prouince any Negroes or other Slaues," and that those who did had "Neglected to instruct them in the Christian faith." The act then declares that baptism "is not nor shall or ought the same be denyed adjudged Construed or taken to be or to amount vnto a manumicon or freeing." The title is the tell. This is not a statute about doubt; it is a statute to encourage the importation of slaves, and removing the religious exit is the means.

Barbados took the opposite route to the same end. In April 1676 the island's Assembly and Council passed "An Act to Prevent the People called Quakers, from bringing Negroes to their Meeting," whose preamble complains that "of late many Negroes have been suffered to remain at the Meeting of Quakers as hearers of their Doctrine, and taught in their Principles; whereby the safety of this Island may be much harzarded [*sic*]" (The

National Archives, CO 30/2, 108–10). Enslaved people found at such meetings were to be forfeited if they belonged to Quakers, and other owners whose slaves attended were fined.

Four years later the argument was made in London. On 8 October 1680, the Journal of the Lords of Trade and Plantations records, the gentlemen of Barbados, Sir Peter Colleton among them, declared that “the conversion of their slaves to Christianity would not only destroy their property but endanger the island, inasmuch as converted negroes grow more perverse and intractable than others, and hence of less value for labour or sale.” The Lords resolved “to leave the Governor, Council, and Assembly to find out the best means for converting the negroes without injury or danger to property,” which became an instruction to Sir Richard Dutton, then going out as Governor. These words are those of the abstract printed in the *Calendar of State Papers*, not a transcript of the planters’ own speech (*CSP Colonial* 1677–1680, no. 1535, 611–12).

The Barbadian argument is the more honest of the two positions, and for the thesis the more useful. It concedes what Virginia’s statute conceals: that the objection to conversion was never doctrinal. Christianity was thought to make a slave harder to hold, not because the law said so but because a person who has been told he has a soul behaves like one. Virginia solved that by legislating the legal consequence away. Barbados solved it by keeping the enslaved out of the meeting house. Both are closures of the religious exit; they differ only in which end of it they block.

The metropolitan seal came in 1729, when the Attorney General, Sir Philip Yorke, and the Solicitor General, Charles Talbot, gave the opinion “that a Slave coming from the West Indies To [Great Britain] or Ireland, with or without his Master, doth not become free; And that his [Master’s] property or Right in him is not thereby determined or varied; And that Baptism doth not bestow ffreedom upon him, or make any Alteration in his Temporal [Condition] in these Kingdoms” (Northumberland Archives, ZMD 114/261). The opinion was given informally, “over after-dinner wine” at Lincoln’s Inn (Wiecek 1974, 93), and George Van Cleve observes that it “cited no authority, and provided no rationale. Yet it was written to be relied upon and was widely published” (Van Cleve 2006, 619). It was

nonetheless treated as an authoritative statement of English law for more than forty years, until Somerset's case in 1772.

What the Divergence Shows

It would be a great error to read the two answers as a contrast of moral temperature, and the thesis is not making that comparison.

Ahmad Bābā was not an abolitionist. The *Miʿrāj* argues about who may lawfully be enslaved, not about whether enslavement is lawful, and it leaves the institution entirely intact. Virginia's assemblymen were not uniquely callous; they were resolving a doubt that their Maryland and Barbadian counterparts resolved in their own ways within the same decade, and that English law officers would resolve the same way sixty years later.

The difference lies within the groundworks, as both societies had reached a point at which religious status could no longer be allowed to determine servile status, because the enslaved were converting and the religious criterion was consequently failing as a criterion. It was doing the opposite of what a criterion is for: instead of sorting people, it was dissolving the sort. Ahmad Bābā's response was to insist that the criterion be honoured and the conversions given effect. Virginia's was to remove the criterion's effect entirely while keeping the sorting.

Once the religious criterion was removed, something else had to do the work of marking who could be held. Katharine Gerbner, in an interview given after the publication of *Christian Slavery* (2018), describes that transition in a single sentence: "Over time, as enslaved people fought their way into Protestant churches, 'white' replaced the word 'Christian' in colonial lawbooks" (Gerbner 2019).

That sentence, from a historian of the Protestant Atlantic with no interest in Timbuktu, describes exactly the mechanism this thesis is arguing for. The religious marker fails. The boundary is redrawn on a ground that conversion cannot cross. The new ground is race. And the sequence runs in the order the thesis predicts: the closure comes first, as a practical necessity of holding property, and the new essential ground is found afterwards, to do the job the old one could no longer do.

Ahmad Bābā won the argument and lost the case. The later history of the trans-Saharan trade, and of black Muslims within it, is the record of that loss. The most evident instance comes before the century was out. In late seventeenth-century Morocco the sultan Mawlay Ismāʿīl ordered the enslavement of all black Moroccans, *ḥarāṭīn* included, for his black army, the ʿAbīd al-Bukhārī, whether or not they were free and whether or not they were Muslim (El Hamel 2013, 160–64). Chouki El Hamel titles that chapter "'Racializing' Slavery: The Controversy of Mawlay Ismaʿil's Project," and it is hard to improve on the phrase.

The Moroccan case is the very outcome Ahmad Bābā's treatise was written to prevent, arriving less than a century later within the same legal tradition. It is not that his argument was refuted *per se*, but rather that the criterion he was defending was overridden by an order, in exactly the way Virginia overrode it by statute. There were two legal systems with two instruments that both fell to the same result: religion stops protecting while descent becomes the deciding factor.

The *ḥarāṭīn* deserve more than the clause they have been given here, because they are the sharpest available instance of the thesis's hypothesis. They were a free or freed population of black Moroccans, and Mawlay Ismāʿīl's order treated that freedom as revocable. El Hamel's own account says as much. The sultan commanded his officials "to enslave those who were free, including the Haratin (meaning free blacks or freed ex-slaves)," and the project "constructed a slave status for all black people, even those who were free" (El Hamel 2010, 89). The ground was colour and origin, not faith: "Skin color and the history of black slavery in Morocco were causes for enslavement, regardless of black people's long integration into Moroccan society as full-fledged Muslims" (El Hamel 2010, 90). The *ḥarāṭīn* of Fez, "conscious of their freedom," protested against the order in 1699 (El Hamel 2010, 92). A category whose members were recognised as free, and who could nonetheless be re-enslaved by decree on the ground of descent, is a category that has not dissolved.

Ahmad Bābā's Own Position

The *Miʿrāj* is not the work of a man defending his own people, and I think the thesis is stronger for saying so explicitly than for neglecting it.

Timbuktu had absorbed a racial vocabulary well before Ahmad Bābā was born. The Sankoré quarter, where the town's Berber and Arab scholarly families lived, his own among them, takes its name from a Songhay phrase sometimes glossed as "white masters" or "white nobles," the "white" corresponding to the Arabic *bīḍān*. The gloss is contested. Houdas and Delafosse, the French translators of the *Tarikh al-fattash*, are reported to have rendered the name simply as the quarter of the nobles or lords, with no colour term in it, and nothing below depends on the etymology.

Stated conditionally, the point is this. If the usual reading holds, a racial hierarchy was written into the street plan of a black West African city, in an African language, with no European involvement whatever. That is a hard fact for any account that treats race as a European colonial export. It should be handled carefully rather than deployed triumphantly, both because the etymology is disputed and because a place name is weak evidence for a social structure. What can be said without the etymology is that Hall's *bīḍān* and *sūdān* categories were operating in the Niger Bend in this period, that they turned on genealogy rather than complexion, and that Ahmad Bābā's own classification was contested in writing.

It was contested in a revealing way. Moroccans sometimes gave him the *nisba* al-Sudani. One of his Moroccan students wrote specifically to clarify that the term referred to residence rather than to race. West African scholars preferred al-Takruri, which named a region without naming a race. Ahmad Bābā used al-Takruri, al-Sanhaji, al-Masini and al-Timbukti of himself, and on the evidence available never al-Sudani. His patriline, the Aqits, claimed Berber and Arab descent. That a student found it necessary to settle his teacher's racial identity in writing is itself evidence of the line's existence and of its consequence.

So the author of the most substantial early refutation of racial slavery in the Islamic west did not consider himself to be on the enslaveable side of the line he was defending. His principal teacher, Muhammad Baghayogho al-Wangari, was of Mandé origin and in all

likelihood black. Mandé and Fulani scholarly families were on good terms with his own. The intellectual culture of Timbuktu in this period was predominantly West African, and scholarship crossed the line freely, while enslaveability did not.

That gap is the finding of great utility, and it generalises. A closure can be socially porous in one register, in teaching, patronage, friendship, shared scholarship, while remaining absolute in another. Ahmad Bābā's biography and his treatise are consistent with each other precisely because the line he was arguing about was not a line that governed whom he could learn from. It governed who could be sold.

This is worth carrying into Chapter IV, because it is the structure of the objection most often made to arguments of this kind in the present. The observation that a category is socially permeable, that people marry across it, work alongside one another, share a culture, is offered as evidence that the category is weakening. Timbuktu in 1615 suggests otherwise. Permeability in the registers that are visible is entirely compatible with closure in the register that decides what can be done to a person.